

SENATE No. 3111

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, June 4, 2026.

The committee on Senate Ways and Means to whom was referred the House Bill enhancing child welfare protections (House, No. 4646) (also based on Senate, No. 2659); reports, recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text of Senate document numbered 3111.

For the committee,
Michael J. Rodrigues

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. Section 172 of chapter 6 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out, in line 133, the words “2A of chapter 38”
3 and inserting in place thereof the following words:- 16 of chapter 18C.

4 SECTION 2. Chapter 6A of the General Laws is hereby amended by striking out section
5 16U, as so appearing, and inserting in place thereof the following section:-

6 Section 16U. (a) As used in this section, the following words shall have the following
7 meanings unless the context clearly requires otherwise:

8 “Child requiring assistance”, as defined in section 21 of chapter 119.

9 “Chronic absenteeism”, missing not less than 10 per cent of days enrolled regardless of
10 whether the absences are considered excused, unexcused or for disciplinary reasons.

11 “Community-based services”, services, including coordination of services, designed to
12 assist families requiring assistance so that, if appropriate, families may avoid entry or re-entry to
13 the child protective service and child requiring assistance legal systems; and children of the
14 family may continue to reside with their family and attend their community school while
15 enjoying a strengthened relationship with their family.

“Family requiring assistance”, a parent, guardian, custodian, sibling and any relative or caretaker who (i) is at elevated risk of being the subject of a petition under section 24 of chapter 119; or (ii) is responsible for a child at risk of being the subject of a petition under section 39E of said chapter 119.

“Habitually absent without permission”, as defined in section 21 of chapter 119.

“Secretary”, the secretary of health and human services.

(b) Subject to appropriation or third party reimbursement, the secretary shall:

(i) establish a network of child and family service programs and family resource centers throughout the commonwealth to provide community-based services to families requiring assistance under subsection (c);

(ii) develop guidelines and standards necessary to achieve and maintain, on a statewide basis, a comprehensive and integrated network of community-based services and family resource centers for children and families;

(iii) promote efficiency by including in the network of community-based services and family resource centers access to the following services: (A) organizations that are part of the comprehensive community-based behavioral health delivery system coordinated by the secretary under section 16S; (B) organizations that provide services or have experience in coordinating access to community-based services such as local schools; (C) other local public agencies and private organizations; (D) local medical, behavioral or mental health care providers; and (E) state-funded services the child or family may be eligible for, including services provided by

agencies within the executive office of health and human services, the executive office of education, and the executive office of housing and livable communities.

(iv) coordinate the services provided by the network and in the family resource centers including, but not limited to, outreach, intake, screening, assessment and referral to services;

(v) encourage cooperation among local providers and state agencies as needed to provide the full complement of services required under this section;

(vi) monitor and provide technical assistance to family resource centers and providers of community-based services;

(vii) require the use of standard intake screening and assessment tools to evaluate families and children seeking community-based services that shall identify the family's strengths, resources and service needs including, but not limited to, mental health, behavioral health or substance abuse treatment, reasonable accommodations for individuals with disabilities, basic family shelter, clothing and food needs, child care needs, health insurance status, legal issues, education services and placement and child protection; and

(viii) create a data collection system for use by programs within the community-based services network and family resource centers that shall: (A) maintain the privacy of clients served, (B) assist programs and the secretary in identifying and addressing the needs of the population to be served, including gaps in service availability and how long clients are waiting to receive services; (C) collect information including, but not limited to, insurance status and benefit coverage of clients served, income documentation as needed to apply a sliding fee scale for payment or waiver of payment for services; (D) collect data regarding the needs identified and services received by a family; and (E) collect such other information deemed necessary to

assist the program and the secretary in providing services, identifying service needs and gaps and evaluating the effectiveness of family resource centers and the community-based services network.

Annually, the secretary shall submit a report to the senate and house committees on ways and means, the joint committee on children, families and persons with disabilities and the child advocate detailing: (i) the number of children and families served at each family resource center; (ii) identified service needs; (iii) the types of services offered in-house and those offered by referral; (iv) service outcomes; (v) service gaps, including unavailable services and services with long wait times; (vi) client feedback; (vii) the number of families served by a multidisciplinary team pursuant to subsection (c); and (viii) the number of children referred to a juvenile court for a child requiring assistance petition following a multidisciplinary team process. All data shall be delineated by the child's race, ethnicity, gender, sexual orientation, transgender status, disability, primary language, and age.

(c) The network of community-based services and family resource centers shall: (i) assist families so that, whenever possible, families may avoid entry or re-entry to the child protective service system and children may continue residing with their families in their home communities; (ii) assist families to enable children to continue as students in their community schools; (iii) strengthen the relationships between children and their families; (iv) assist families in connecting with local, state, and federal services to help meet basic family shelter, clothing, food and health needs; (v) provide coordinated, comprehensive, community-based services for children at risk of chronic absenteeism, dropping out of school, committing delinquent acts or engaging in behaviors that impede the likelihood of leading healthy, productive lives, or for

children who have been referred by a school or from the juvenile court pursuant to section 39E of chapter 119.

Services offered through the network shall include, but not be limited to, treatment for or assistance with: (i) eligibility determinations; (ii) applying for state services including MassHealth; (iii) financial assistance programs including Supplemental Security Income and services provided or funded by executive branch agencies; (iv) behavioral, medical and mental health needs; (v) substance use treatment; (vi) special education evaluation; (vii) remedial education services; (viii) assistance with insurance issues; (ix) mentoring; (x) family and parent support; (xi) civic engagement and community service; (xii) after school and out-of-school opportunities; (xiii) residential programs; (xiv) crisis management; and (xv) case management.

Each family resource center shall identify the service needs of each family in accordance with the requirements of subsection (b)(vii). Subject to appropriation, each family resource center shall assign a case manager to any high-needs families who voluntarily accept service. Said case manager shall assist the family in identifying and navigating appropriate services in the network. If a case meets the eligibility criteria for an interagency review of complex cases under section 16R, the family resource center shall refer the child to the interagency review team. For cases that do not meet the eligibility requirements under said section 16R, the family resource center may convene a multidisciplinary team to fulfill the functions listed in this subsection. Multidisciplinary teams shall consist of, but not be limited to the child, the child's parents or caregivers and family resource center staff, and when appropriate may include family partners, advocates, community-based service providers, educational advocates, representatives from state agencies or school district representatives. Multidisciplinary teams shall work to identify any

needs of the child or family with the goal of providing supports to the child and their family outside of the juvenile court process to the extent possible.

A case manager shall not refer a family to the juvenile court for the purpose of filing a child requiring assistance petition unless all other community-based service options have been exhausted. Family resource center staff shall be authorized to report to a probation officer upon request if a child that is the subject of an attempted child requiring assistance petition has met with a case manager pursuant to this section and if all relevant community-based service options have been exhausted. Any other information about the child or family shall be kept confidential pursuant to subsection (d).

The secretary of health and human services shall issue guidance to effectuate this section. The guidance shall include, but not be limited to: (i) a description of situations in which convening a multidisciplinary team may be appropriate; (ii) the role of family resource center staff in facilitating the work of the multidisciplinary team; (iii) the circumstances under which staff from state health and human service agencies are required to participate and what that participation shall entail; (iv) the process by which disagreements about the case plan shall be resolved; (v) requirements for obtaining client or parental consent; (vi) processes for providing information to the juvenile court about a family's participation in services when the family or a school has filed a child requiring assistance petition; (vii) data gathering and reporting requirements; and (viii) protocols for when and how a family shall be referred to the juvenile court for a child requiring assistance petition.

(d) Any documentation of services provided to the child and family through the network of community-based services or in the family resource centers shall not be public records under

clause Twenty-sixth of section 7 of chapter 4. Except as otherwise required by law, including laws related to the reporting of suspected abuse or neglect under section 51A of chapter 119, statements made by the child and family while receiving services from the network of community-based services shall be treated as confidential and shall not be used in any proceedings without the written consent of the person making the statement. Information about the child and family requiring assistance, including interactions with service providers and protected health information, may be shared among the case team, other providers of community services for families and any agency within the executive office of health and human services providing such services to the child as needed to coordinate treatment and provide appropriate case management, to the extent permitted under applicable federal law, unless the child or family declines in writing to permit such information sharing.

(e) Participation in community-based services and use of the family resource centers shall be under a voluntary agreement of the parent, legal guardian or custodian and the child; provided, however, that provision of community-based services may be contingent upon such parent, legal guardian or custodian agreeing to pay for such services or consenting to allow covered services to be billed to applicable third party payers, including insurance providers.

(f) A school administrator shall refer a student and their caregivers to a family resource center at the same time as the administrator notifies a student and the parent, legal guardian or custodian of the student that the student is at risk of expulsion for failure to comply with the lawful and reasonable rules of the school. After providing the process that is due to the student, including an expulsion hearing if requested under sections 37H and 37H1/2 of chapter 71, the school administrator shall consider the outcome of the community-based services if the student provides such outcome information to the school. After an expulsion is imposed, the student may

continue to provide information relative to the outcome of any community-based services rendered, and the school administrator shall consider the outcome of any community-based services rendered when such information is provided. Notwithstanding the outcome of any community-based services, school districts shall make available to expelled students educational services designed to lead to re-entry to a regular education program or to a high school diploma.

A school administrator shall refer a student's caregivers to a family resource center prior to filing a child requiring assistance petition pursuant to section 39E of chapter 119. A school shall make and document efforts to identify and address potential causes of chronic absenteeism, including but not limited to previously unidentified or inadequately addressed special educational needs, behavioral health needs, bullying, and harassment, before referring the child and family to a family resource center for chronic absenteeism or filing a child requiring assistance petition with the juvenile court.

(g) Nothing in this section shall diminish or interfere with the rights and protections afforded to students with disabilities under federal and state special education laws.

SECTION 3. Section 6A of chapter 18B of the General Laws, as so appearing, is hereby amended by striking out the fifth paragraph.

SECTION 4. Said chapter 18B is hereby further amended by inserting after section 6A the following section:-

Section 6B. (a) The commissioner shall establish and maintain an education unit, which shall: (i) implement and oversee the work of the regional offices and area directors on education for children receiving services from the department, consistent with policies created by the department's education director; (ii) monitor student academic progress of children under the

care and custody of the regional office not less than once per academic quarter; (iii) provide support and assistance to department social workers regarding educational needs of children; (iv) provide detailed training to department social workers on the best practices to monitor a child's education experiences, recognizing any unavailability of resources preventing a child from participating in school courses and developing individualized education programs and section 504 plans; (v) ensure the timeliness and accuracy of the transfer of education records detailing a child's educational background and needs; and (vi) maintain contact with appropriate local school districts and education organizations to facilitate the enrollment, information sharing and placement of children into school districts served by the area office.

(b) The commissioner shall appoint an education director. The education director's duties shall include, but shall not be limited to: (i) developing, implementing and overseeing the department's policies on education for children under the care and custody of the department, including policy development and practice guidance; (ii) monitoring state and federal laws, programs and resources that may impact the education of children under the care and custody of the department; (iii) advising the commissioner and all education specialists on all matters relating to education, strategic education initiatives, policy and practice management matters; (iv) coordinating efforts of the education specialists to identify and address systemic barriers to accessing educational services for children under the care and custody of the department, including issues related to transportation for children in department care or custody to attend their school of origin; (v) coordinating with area directors and regional offices on education related issues; and (vi) facilitating best practice training for education specialists. The education director shall perform duties pursuant to this section and such other duties as may be assigned by the commissioner.

(c) The director shall, subject to the approval of the commissioner, appoint education specialists who shall be employees of the department and who shall devote their full time and attention to supporting the department's goal of educational stability and success for all elementary and secondary school students under the care and custody of the department.

(d) An education specialist may, to the extent permitted by federal law, accompany social workers to meetings with school personnel, including, but not limited to, meetings relative to a child's individualized education program or 504 plan.

SECTION 5. Section 7 of said chapter 18B, as so appearing, is hereby amended by striking out subsections (e) to (o), inclusive, and inserting in place thereof the following 11 subsections:-

(e) The commissioner shall develop and implement a plan for the orientation and training of area-based and other staff. The plan shall require all employees to be issued photo identification to be used in the performance of their duties, including for display upon introduction.

(f) The commissioner shall coordinate the overall service planning of the department with planning under Title XX of the Social Security Act, 42 U.S.C. 1397 et seq.

(g) The commissioner may apply for and accept on behalf of the commonwealth federal, local or private grants, bequests, gifts or contributions.

(h) The commissioner shall, subject to chapter 30A, adopt rules and regulations necessary to carry out this chapter and chapter 119.

(i) The commissioner shall include in the budget estimates of the department funds for the development and implementation of said management information system, monitoring and evaluation system, annual needs assessment and staff training plan.

(j) The commissioner shall, subject to appropriation, enter into contracts with nonprofit organizations to provide services for families and individuals in emergency and transitional housing; provided, however, that the department shall, in entering into such contracts, provide \$3 for each dollar of donated funds that have been committed to such nonprofit organizations from any non-state source; and provided further, that for the purposes of this subsection, a non-state source may include private donations or monies from city, town or county governments but shall not include funds from other state agencies.

(k) Prior to undertaking any activity or implementing any policy that would affect expenditures for medical assistance under chapter 118E, including, but not limited to, identifying individuals eligible for such assistance under said chapter 118E, the commissioner shall ensure that such activity or policy is reviewed by the director of Medicaid.

(l) Not more than 3 per cent of the department's annual budget shall be appropriated in a separate account and expended for the purposes of subsections (b), (c) and (d).

(m) The commissioner shall consult with the commissioner of mental health prior to taking any action substantially affecting the design and implementation of behavioral health services for children under guidelines established by the secretary of health and human services under section 16S of chapter 6A.

(n) Upon receipt of a completed review of multiple 51A reports required under subsection (r) of section 51B of chapter 119, the commissioner shall immediately notify: (i) the

234 district attorney for the county in which the child resides and for the county in which the event
235 giving rise to a report occurred; (ii) local law enforcement authorities in the city or town in
236 which the child resides and in the city or town in which the event giving rise to a report occurred;
237 and (iii) the office of the child advocate.

238 (o) The commissioner shall require social workers employed by the department to obtain
239 a license as a social worker pursuant to section 131 of chapter 112 within the first 9 months of
240 employment. The commissioner shall require social workers employed by the department to
241 participate in not less than 30 hours per year of paid professional development training;
242 provided, however, that such training shall be consistent with applicable collective bargaining
243 agreements. The commissioner may grant a social worker employed by the department a 1-time
244 6-month hardship waiver from the licensing requirement under this subsection to ensure access
245 for underserved populations.

246 SECTION 6. Section 20 of said chapter 18B, as so appearing, is hereby amended by
247 striking out the second sentence.

248 SECTION 7. Said chapter 18B is hereby further amended by striking out section 23, as
249 inserted by section 45 of chapter 176 of the acts of 2008.

250 SECTION 8. Said chapter 18B is hereby further amended by striking out section 23,
251 inserted by section 8 of chapter 321 of the acts of 2008, and inserting in place thereof the
252 following section:-

253 Section 23. If the department has care and custody of a child receiving inpatient
254 psychiatric services, the department shall: (i) contact the child's parents or guardians, as
255 appropriate, and a member of the child's treatment team within 3 business days of the

hospitalization; (ii) maintain weekly contact with them until the child is discharged; and (iii) immediately begin discharge planning, with the priority of returning the child to their home or to a community placement. Not later than 5 business days after being notified that continued hospitalization is no longer clinically appropriate, the department shall determine the appropriate type of placement for the child and immediately initiate the placement referrals. The department shall document its activities in assisting with discharge placement, including identification of available resources for home-based, community or alternative residential placements, and the barriers, if any, to discharge the child to the most clinically appropriate setting. If the initial placement is not deemed to be the most clinically appropriate setting, the department shall continue to seek an appropriate placement. Not later than 30 days after being notified that continued hospitalization is no longer clinically appropriate, the department shall refer the child to the interagency review team established pursuant to section 16R of chapter 6A.

SECTION 9. Sections 24 and 25 of said chapter 18B are hereby repealed.

SECTION 10. Said chapter 18B is hereby further amended by adding the following 3 sections:-

Section 26. (a)(1) Annually, not later than October 31, the department shall issue a report that provides an overview of the department's performance during the previous fiscal year. The report shall include comparative departmental information from prior fiscal years. The commissioner shall file the report with the governor, the child advocate, the clerks of the senate and the house of representatives, the senate and house committees on ways and means and the joint committee on children, families and persons with disabilities. The commissioner shall provide the recipients of the report with an opportunity to discuss its contents with the

department. The report shall be made publicly available on the department's website in accordance with section 19 of chapter 66; provided, however, that any personally identifiable information in the report shall be deidentified or removed prior to the report's publication on the department's website.

(2) The report required pursuant to paragraph (1) shall include, but shall not be limited to, narratives, information, data and analysis on the department's:

(i) counts, including, but not limited to: (A) case counts; (B) the number of children served by the department; (C) child demographic information, including age, race, ethnicity, primary language, birth sex, gender identity, sexual orientation and disability; (D) intersectional data; (E) rates of racial disproportionality and disparity at various decision points throughout the life of a case, including, but not limited to: (1) protective intakes and responses; (2) children ages 0 through 17 years, inclusive, with an open case as compared to the proportion of the child population in the commonwealth; (3) the number of children and youth in placement by placement type; (4) permanency plans for children and youth in placement, including plans meeting the federal permanency standard; (5) permanency outcomes as compared to children in placement; (6) the median placement length of stay, in days, for children who exited care as well as for children who were in out-of-home care; (7) placement moves per 1,000 placement days for children who entered care during the specified fiscal year; (8) exits from care to reunification, adoption and guardianship as a rate of all exits from placement; and (9) youth aging out as a rate of all exits from placement; (F) the number of requests for reasonable accommodations, broken down by accommodation type; (G) the total number of disability related complaints filed with the department, broken down by complaint type and region; (H) reports filed pursuant to section 51A of chapter 119; (I) placement metrics, including, but not limited to: (1) placement moves per

1,000 placement days for children who entered care during the specified fiscal year; (2) initial placement with kin; and (3) the median number of placements between a home removal episode and an initial placement review; (J) infants brought into the department's care pursuant to section 39½ of chapter 119; and (K) siblings in placement;

(ii) processes and outcomes, including, but not limited to: (A) protective responses and safety outcomes; (B) the number of fatalities, including the manner of death, of children with a family history with the department; (C) permanency processes and outcomes, including, but not limited to, reunification, adoption, guardianship, kinship adoption, kinship guardianship and aging out; (D) well-being outcomes, including the rates and timeliness of the delivery of medical services; and (E) educational well-being outcomes, including, but not limited to, school placement information, the number of individualized education programs, attendance rates, high school graduation rates and school disciplinary actions; and

(iii) operations, including, but not limited to: (A) staffing trends; (B) caseloads; (C) the department's budget, including funding levels; (D) service costs, including, but not limited to, departmental foster care, contracted foster care, complex medical foster care, congregate care, adoption and guardianship subsidies, foster care support services, respite and support and stabilization; (E) medical services and advancements in providing medical services to children and young adults in the department's care; (F) the number of children and young adults in the department's care in emergency departments, inpatient units, psychiatric hospitals or community-based acute treatment programs who are awaiting alternate placements and the average duration of days waiting; (G) any new or ongoing initiatives to improve practices, procedures and policy of the department; and (H) the number and types of complaints received pursuant to section 23E of chapter 119 of the General Laws.

(b) Not later than 45 days after the end of each fiscal quarter, the department shall issue a quarterly profile that shall be posted on its website in accordance with section 19 of chapter 66 that shall include, but not be limited to, departmental, regional office and area office data on: (i) the number of children served by the department; (ii) the number of reports filed pursuant to section 51A of chapter 119, including, but not limited to, the total number of reports received, screened-in and screened-out in total and by reporter role; (iii) rates and recurrence of maltreatment of children; (iv) department case counts, including the number of clinical and adoption cases; (v) child demographic information, including age, race, ethnicity, primary language, birth sex, gender identity and sexual orientation and disability; (vi) the number of children and youth in placement by type of placement; and (vii) the number of children and youth not in placement.

(c) Annually, not later than October 31, the department shall file a report on services provided to young adults over the age of 18 with the child advocate, the clerks of the senate and the house of representatives, the senate and house committees on ways and means and the joint committee on children, families and persons with disabilities. The report shall include, but shall not be limited to: (i) a summary of the process by which a young adult may continue to receive services from the department upon reaching the age of 18; (ii) demographic information on young adults detailing age, race, ethnicity, primary language, gender identity, sexual orientation, disability and rates of racial disproportionality and disparity; (iii) the number of young adults who have elected to sustain or reestablish a connection with the department in the previous fiscal year; (iv) the number of young adults who have elected not to remain with the department and have transitioned out of the child welfare system in the previous fiscal year, including young adults who had previously elected to sustain a connection with the department, if such numbers

are available; and (v) the number of transition-age young adults aging out of the child welfare system with: (A) stable and permanent housing; (B) full- or part-time employment or military enlistment; (C) health insurance; or (D) if sought, post-secondary education such as college, job training or a certificate program within 6 months of transition.

(d)(1) Annually, not later than October 31, the department shall file a report on its fair hearing processes and cases with the child advocate, the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities. The report shall be made available to the public electronically in accordance with section 19 of chapter 66. The report shall include, but shall not be limited to, information in a form that shall not include personally identifiable information on the fair hearing requests open at any time during the previous fiscal year. For each fair hearing request, the report shall provide: (i) the subject matter of the appeal; (ii) the outcomes of cases resolved prior to a fair hearing decision; (iii) the number of days between the hearing request and the first day of the hearing; (iv) the number of days between the close of the evidence and the hearing officer's decision; (v) the number of days of continuance granted at the appellant's request; (vi) the number of days of continuance granted at the request of the department; (vii) the number of days of continuance granted at the request of the hearing officer; and (viii) whether the department's decision that was the subject of the appeal was affirmed or reversed.

(2) The department shall maintain and make available to the public, during regular business hours, a record of its fair hearings in a form that shall not include personally identifiable information but shall include, for each hearing request: (i) the date of the request; (ii) the date of the hearing decision; (iii) the decision rendered by the hearing officer; and (iv) the final decision rendered upon the commissioner's review. For fair hearing requests that are pending for more

than 180 days at any time during the fiscal year, except for those requests which have been stayed at the request of the district attorney, the report shall provide the number of such cases, the number of those cases that have been heard but not decided and the number of cases that have been decided by the hearing officer but for which a final agency decision has not yet been issued.

(e) Annually, not later than October 31, the department shall file with the child advocate, the clerks of the house of representatives and the senate and the joint committee on children, families and persons with disabilities a report on the foster care review system and any recommendations for its improvement, including, but not limited to: (i) the population served by the department, including, but not limited to, case counts, child, youth and young adult and parent or caregiver counts and children, youth and young adults in placement; (ii) a foster care review overview, including, but not limited to, foster care review policy, the number of children, youth and young adults in placement with a convened foster care review and the foster care review considerations; (iii) scheduling, including, but not limited to, scheduled and convened foster care review meetings, children, youth and young adults reviewed, duration of meetings and timeliness of foster care review report completion; (iv) attendance, including, but not limited to, foster care review meeting panel composition and mandated participants invited and attended; (v) the review process, including, but not limited to, the department action plan, placement activities, social worker contact, parent-child visitation, health, education and well-being needs, information on youth and young adults and systemic barriers for children, youth and young adults and parents or caregivers; (vi) foster care review determinations; (vii) minority opinions, including, but not limited to, minority opinions by a panel member; and (viii) foster care review follow-up activities.

(f) If the department is unable to submit the report under subsection (a), issue the profile under subsection (b) or submit any other reports required pursuant to subsections (c), (d) and (e) by the respective deadlines, the commissioner shall notify in writing the governor, the child advocate, the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities of the delay and provide an explanation for the delay.

(g) The department may satisfy the reporting requirements of subsections (c) through (e) by providing the requested information in the annual report filed pursuant to subsection (a). The department may substitute reports required by this section with data visualization tools that are accessible and compliant with the Americans with Disabilities Act, 42 U.S.C. § 12101 et seq., as amended.

Section 27. (a)(1) The commissioner shall notify the joint committee on children, families and persons with disabilities when draft regulations are available for public comment. Such notice shall be provided not later than the day that draft regulations are made public.

(2) Not later than 30 days after the promulgation of regulations or the effective date of adopted or revised departmental policies related to services provided to children and families, the department shall provide copies of such regulations or departmental policies to the joint committee on children, families and persons with disabilities.

(b) Not later than 5 days after the end of each fiscal quarter, the commissioner shall notify the senate and house committees on ways and means and the joint committee on children, families and persons with disabilities when data from a profile issued pursuant to subsection (b) of section 26 significantly departs from data reported in a previous profile.

Section 28. (a) The department shall establish a 5-year plan, on a fiscal year basis, that shall include, but not be limited to, numeric targets for the department's performance in each fiscal year and by region in the areas of safety, permanency and well-being. The plan shall include a description of how the department will measure its progress toward meeting the numeric performance targets and may include different performance targets by region. In developing the plan, the department may consult with governmental and non-governmental partners, as necessary. The department shall update the plan annually.

(b) Annually, the department shall measure its performance in meeting the numeric performance targets established in the 5-year plan for the commonwealth as a whole and by region. The department shall publish and maintain on its website a copy of the current 5-year plan, the numeric and performance targets for previous years and the department's progress in meeting those performance targets.

(c) If, in any fiscal year, the department is unable to comply with the requirements of subsections (a) and (b), the department shall notify, as soon as practicable, the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on children, families and persons with disabilities and the child advocate.

SECTION 11. Section 1 of chapter 18C, as so appearing, is hereby further amended by striking out the definition of "critical incident" and inserting in place thereof the following definition:-

"Critical incident", (i) a fatality, near fatality or serious bodily injury or emotional injury of a child or the indecent assault and battery of a child pursuant to sections 13B to 13B³/₄ of chapter 265, inclusive, or the rape and abuse of a child pursuant to sections 23 to 23B, inclusive,

of said chapter 265, who is in the custody of, or receiving services from, an executive agency or a constituent agency; or (ii) circumstances that result in a reasonable belief that an executive agency or a constituent agency failed in its duty to protect or adequately serve a child and, as a result, the child suffered or was at imminent risk of suffering serious bodily injury or emotional injury or death.

SECTION 12. Said section 1 of said chapter 18C, as so appearing, is hereby further amended by inserting after the definition of “Department” the following definition:-

“Emotional injury”, an injury or harm that occurs when a child of any age witnesses the fatality or life-threatening incident of an individual as a result of an unexpected medical event, overdose, violent act or accident, suicide or attempted suicide.

SECTION 13. Said section 1 of said chapter 18C, as so appearing, is hereby further amended by striking out the definition of “Executive agency” and inserting in place thereof the following 2 definitions:-

“Executive agency”, a state agency within the office of the governor that provides services to children, through direct services, guidance, oversight, contracted services and licensing functions; provided, however, that executive agencies shall include the executive office of education, the executive office of public safety and security, the executive office of health and human services, and their constituent agencies, the Massachusetts interagency council on housing and homelessness and the executive office of housing and livable communities; and provided further, that constituent agencies shall include, but not be limited to, the department of children and families, the department of youth services, the department of public health, the

department of mental health, the department of developmental services, the department of early education and care and the department of elementary and secondary education.

“Near fatality”, an injury that is: (i) accidental or the result of a medical condition, attempted suicide or abuse or neglect; and (ii) certified by a physician to be life threatening.

SECTION 14. Said section 1 of said chapter 18C, as so appearing, is hereby further amended by striking out the definition of “serious bodily or emotional injury” and inserting in place thereof the following definition:-

“Serious bodily injury”, an injury which involves: (i) a substantial risk of death; (ii) extreme physical pain, protracted and obvious disfigurement; or (iii) protracted loss or impairment of the function of a bodily member, organ or mental faculty.

SECTION 15. Section 2 of said chapter 18C, as so appearing, is hereby amended by striking out, in lines 2 and 3, the words “independent of any supervision or control by any executive agency.” and inserting in place thereof the following words:- an independent state agency that shall not be subject to the supervision or control of any other executive office, executive agency or constituent agency, commission, board, bureau or political subdivision of the commonwealth. The office shall oversee the services that executive agencies or constituent agencies provide to children in the commonwealth.

SECTION 16. The first paragraph of said section 2 of said chapter 18C, as so appearing, is hereby amended by striking out clauses (c) to (e), inclusive, and inserting in place thereof the following 6 clauses:-

(c) examine, on a systemwide and individual case basis, the care and services that executive agencies or constituent agencies provide to children through direct services, guidance, oversight, contracted services and licensing functions.

(d) advise the public and those at the highest levels of state government about how the commonwealth may improve its services to and for children and their families;

(e) examine disproportionalities in the provision of services to children related to race, ethnicity, disability status, transgender status, sexual orientation or gender identity; provided, that the office shall use data provided by executive agencies or constituent agencies related to the provision of services provided by the executive agencies or constituent agencies;

(f) subject to appropriation, partner with executive agencies, constituent agencies or other entities if it is in the best interest of the children of the commonwealth to: (i) support programs, including establishing pilot programs; and (ii) expand or improve current programs; provided, however, that the child advocate shall not enter into any partnership that may jeopardize the office's oversight functions;

(g) provide training and technical assistance to executive agencies and constituent agencies to improve services to children if it is in the best interest of the children of the commonwealth; provided, however, that the child advocate shall not provide training or technical assistance that may jeopardize the office's oversight functions; and

(h) maintain a publicly available website that shall make materials available for mandated reporters, including, but not limited to, trainings, guidance, statutory references, resources for individuals and families and best practices.

499 SECTION 17. Section 3 of said chapter 18C, as so appearing, is hereby amended by
500 adding the following new paragraph:-

501 The child advocate’s annual salary shall be 90 per cent of the salary of the chief justice of
502 the supreme judicial court.

503 SECTION 18. Section 4 of said chapter 18C, as so appearing, is hereby amended by
504 striking out the last paragraph.

505 SECTION 19. Subsection (a) of section 5 of said chapter 18C, as so appearing, is hereby
506 amended by inserting after the first sentence the following sentence:- Notification shall include
507 demographic information of the child involved in the critical incident, if known.

508 SECTION 20. Said section 5 of said chapter 18C, as so appearing, is hereby further
509 amended by striking out, in lines 5, 8, 16, 19 and 21, the word “his”, each time it appears, and
510 inserting in place thereof, in each instance, the following word:- their.

511 SECTION 21. Said section 5 of said chapter 18C, as so appearing, is hereby further
512 amended by striking out, in lines 6 and 18, the word “he”, each time it appears, and inserting in
513 place thereof, in each instance, the following word:- they.

514 SECTION 22. Said section 5 of said chapter 18C, as so appearing, is hereby further
515 amended by striking out, in line 25, the word “his” and inserting in place thereof the following
516 words:- the office’s.

517 SECTION 23. Said section 5 of said chapter 18C, as so appearing, is hereby further
518 amended by striking out, in line 28, the word “him” and inserting in place thereof the following
519 words:- the child advocate.

SECTION 24. Said section 5 of said chapter 18C, as so appearing, is hereby further amended by adding the following 2 subsections:-

(i) Prior to publicly releasing a final report related to an investigation where the child advocate makes a determination that there is a reasonable belief that an executive agency or a constituent agency failed in its duty to protect or adequately serve a child, the child advocate shall submit a copy of the final report to the governor, the attorney general, the auditor, the speaker of the house of representatives and the senate president.

(j) The department shall inform the child advocate as soon as practicable when a foster care review safety alert has been issued. The office shall review the circumstances of the foster care review safety alert and provide feedback to the department on individual cases and trends in services.

SECTION 25. Section 6 of said chapter 18C, as so appearing, is hereby amended by striking out, in line 1, the word “his” and inserting in place thereof the following word:- their.

SECTION 26. Section 9 of said chapter 18C, as so appearing, is hereby amended by striking out, in line 2, the word “his” and inserting in place thereof the following word:- their.

SECTION 27. Section 10 of said chapter 18C, as so appearing, is hereby amended by inserting after the figure “5”, in line 7, the following words:- , data related to the mandated reporter training and website pursuant to subsection (h) of section 2, any examination of systemwide challenges pursuant to section 11.

SECTION 28. Said chapter 18C is hereby further amended by striking out section 11, as so appearing, and inserting in place thereof the following section:-

Section 11. The child advocate may examine systemwide challenges to providing adequate services to children. The child advocate may prioritize the examination of challenges that: (i) include multiple executive agencies or constituent agencies; and (ii) affect the most vulnerable children. Systemwide examinations shall include recommendations for improvements to the services provided to children by executive agencies or constituent agencies. The child advocate may utilize any source of information available to the office to make recommendations and may seek advice from individuals with expertise in relevant fields of work or study. The child advocate shall file a report on any examination with the governor, the clerks of the senate and the house of representatives, the senate and house committees on ways and means and the joint committee on children, families and persons with disabilities.

SECTION 29. Section 12 of said chapter 18C, as so appearing, is hereby amended by striking out, in line 12, the word “his”.

SECTION 30. Said section 12 of said chapter 18C, as so appearing, is hereby further amended by striking out, in line 21, the words “chapter 66” and inserting in place thereof the following words:- chapters 66 and 66A.

SECTION 31. Said section 12 of said chapter 18C, as so appearing, is hereby further amended by striking out, in line 23, the word “his” and inserting in place thereof the following word:- the.

SECTION 32. Subsection (e) of said section 12 of said chapter 18C, as so appearing, is hereby amended by striking out the first sentence and inserting in place thereof the following sentence:- The restrictions of this section shall not preclude the child advocate from: (i) sharing the report of, or the results of, a critical incident investigation involving an executive agency or

constituent agency with the governor, the attorney general, a district attorney, a secretary or commissioner or other agency personnel involved in the critical incident investigation, the senate president, the speaker of the house of representatives or the chairs of the joint committee on children, families and persons with disabilities; (ii) sharing information with an executive agency or constituent agency when the child advocate deems, in their sole discretion, that such information sharing is necessary for the child advocate to perform the child advocate's duties; or (iii) issuing a public report when such report, in the sole discretion of the child advocate, is necessary for the child advocate to perform their duties.

SECTION 33. Section 13 of said chapter 18C, as so appearing, is hereby amended by striking out, in lines 5 and 6, the word "his" and inserting in place thereof, in each instance, the following word:- their.

SECTION 34. Said chapter 18C is hereby further amended by adding the following 3 sections:-

Section 15. The office shall prepare and update from time to time online resources which the juvenile court shall publish on its official website, including: (i) a video clearly defining a child requiring assistance petition, how to file such a petition, the potential outcomes of filing, and a brief overview of community-based resources that may be utilized before filing a petition, including but not limited to family resource centers and the behavioral health helpline; and (ii) a corresponding written overview that contains information about community-based resources.

Section 16. (a) As used in this section, the following words shall have the following meanings, unless the context clearly requires otherwise:

"Child", a person under the age of 18.

585 “Fatality”, a death of a child.

586 “Local team”, a local child fatality review team established in subsection (c).

587 “Near fatality”, an act that, as certified by a physician, places a child in serious or critical
588 condition.

589 “State team”, the state child fatality review team established in subsection (b).

590 “Team”, the state or a local team.

591 (b)(1) There shall be a state child fatality review team within the office. Notwithstanding
592 section 172 of chapter 6, members of the state team shall be subject to criminal offender record
593 checks to be conducted by the colonel of state police on behalf of the child advocate. All
594 members shall serve without compensation for their duties associated with membership on the
595 state team. The state team shall include, but shall not be limited to: (i) the child advocate or a
596 designee, who shall serve as co-chair; (ii) the commissioner of public health or a designee, who
597 shall serve as co-chair; (iii) the chief medical examiner or a designee; (iv) the attorney general or
598 a designee; (v) the commissioner of children and families or a designee; (vi) the commissioner of
599 elementary and secondary education or a designee; (vii) a representative selected by the
600 Massachusetts District Attorneys Association; (viii) the colonel of state police or a designee; (ix)
601 the commissioner of mental health or a designee; (x) the commissioner of developmental
602 services or a designee; (xi) the director of the Massachusetts Center for Unexpected Infant and
603 Child Death at Boston Medical Center or a designee; (xii) the commissioner of youth services or
604 a designee; (xiii) the commissioner of early education and care or a designee; (xiv) a
605 representative selected by the Massachusetts chapter of the American Academy of Pediatrics
606 who has experience in diagnosing or treating child abuse and neglect; (xv) a representative

selected by the Massachusetts Health and Hospital Association, Inc.; (xvi) the president of the Massachusetts Chiefs of Police Association Incorporated or a designee; and (xvii) any other person, selected by the co-chairs or by majority vote of the members of the state team, with expertise or information relevant to an individual case.

(2) The purpose of the state team shall be to decrease the incidence of preventable child fatalities and near fatalities by: (i) developing an understanding of the causes and incidence of child fatalities and near fatalities; and (ii) advising the governor, the general court and the public by recommending changes in law, policy and practice to prevent child fatalities and near fatalities. The state team may consult with the chief justice of the juvenile court department of the trial court on issues with a direct bearing upon the business of the courts of the commonwealth.

(3) To achieve its purpose, the state team shall: (i) develop model investigative and data collection protocols for local teams; (ii) provide information to local teams and law enforcement agencies for the purpose of protecting children; (iii) provide training and written materials to local teams to assist them in carrying out their duties; (iv) review reports from local teams; (v) study the incidence and causes of child fatalities and near fatalities in the commonwealth; (vi) analyze community, public and private agency involvement with the children and their families prior to and subsequent to fatalities or near fatalities; (vii) develop a protocol for the collection of data regarding fatalities and near fatalities and provide training to local teams on the protocol; (viii) develop and implement rules and procedures necessary for its own operation; and (ix) provide the governor, the general court and the public with annual written reports, subject to confidentiality restrictions, that shall include, but shall not be limited to, the state team's findings and recommendations.

(c)(1) There shall be a local child fatality review team in each district established under section 13 of chapter 12. Notwithstanding section 172 of chapter 6, members of a local team shall be subject to criminal offender record checks to be conducted by the district attorney in each such district. All members shall serve without compensation for their duties associated with membership on a local team. Each local team shall include, but shall not be limited to: (i) the district attorney of the county, who shall serve as chair; (ii) the chief medical examiner or a designee; (iii) the commissioner of children and families or a designee; (iv) a pediatrician with experience in diagnosing or treating child abuse and neglect, appointed by the state team; (v) a local police officer from a municipality where a child fatality or near fatality occurred, appointed by the chief of police of the municipality; (vi) a state law enforcement officer, appointed by the colonel of state police; (vii) the director of the Massachusetts Center for Unexpected Infant and Child Death located at Boston Medical Center or a designee; (viii) at least 1 representative from the department of public health; (ix) at least 1 representative from the office; and (x) any other person, selected by the co-chairs or by majority vote of the members of the state team, with expertise or information relevant to an individual case; provided, that such person may include, but shall not be limited to, a local or state law enforcement officer, a hospital representative, a medical specialist or subspecialist or a designee of the commissioners of developmental services, mental health, youth services, education and early education and care.

(2) The purpose of each local team shall be to decrease the incidence of preventable child fatalities and near fatalities by: (i) coordinating the collection of information on fatalities and near fatalities; (ii) promoting cooperation and coordination between agencies responding to fatalities and near fatalities and in providing services to family members; (iii) developing an understanding of the causes and incidence of child fatalities and near fatalities in the county; and

(iv) advising the state team on changes in law, policy or practice that may affect child fatalities and near fatalities.

(3) To achieve its purpose, each local team shall: (i) review, establish and implement model protocols from the state team; (ii) review, subject to the approval of the local district attorney, all individual fatalities and near fatalities in accordance with the established protocols; (iii) meet periodically, not less than 2 times per calendar year, to review the status of fatality and near fatality cases and recommend methods of improving coordination of services between member agencies; (iv) collect, maintain and provide confidential data as required by the state team; and (v) provide law enforcement or other agencies with information to protect children.

(4) At the request of the local district attorney, the local team shall immediately be provided with: (i) information and records relevant to the cause of the fatality or near fatality maintained by providers of medical or other care, treatment or services, including dental and mental health care; (ii) information and records relevant to the cause of the fatality or near fatality maintained by any state, county or local government agency, including, but not limited to, birth certificates, medical examiner investigative data, parole and probation information records and law enforcement data post-disposition; provided, however, that certain law enforcement records may be exempted by the local district attorney; (iii) information and records of any provider of social services, including the department, relevant to the child or the child's family, that the local team deems relevant to the review; and (iv) demographic information relevant to the child and the child's immediate family, including, but not limited to, address, age, race, gender and economic status. The district attorney may enforce this paragraph by seeking an order of the superior court.

(d) Any privilege or restriction on disclosure established pursuant to chapter 66A, section 70 of chapter 111, section 11 of chapter 111B, section 18 of chapter 111E, chapter 112, chapter 123, section 20B, 20J or 20K of chapter 233 or any other law relating to confidential communications shall not prohibit the disclosure of this information to the chair of the state team or a local team. Any information considered to be confidential pursuant to the aforementioned statutes may be submitted for a team's review upon the determination of that team's chair that the review of this information is necessary. The chair shall ensure that no information submitted for a team's review is disseminated to parties outside the team. No member of a team shall violate the confidentiality provisions set forth in the aforementioned statutes. Except as necessary to carry out a team's purpose and duties, members of a team and persons attending a team meeting shall not disclose any information relating to the team's business. Team meetings shall be closed to the public. Information and records acquired by the state team or by a local team pursuant to this chapter shall be confidential, exempt from disclosure under chapter 66 and may only be disclosed as necessary to carry out a team's duties and purposes. Statistical compilations of data that do not contain any information that would permit the identification of any person may be disclosed to the public.

(e) Members of a team, persons attending a team meeting and persons who present information to a team shall not be questioned in any civil or criminal proceeding regarding information presented in or opinions formed as a result of a team meeting.

(f) Information, documents and records of the state team or of a local team shall not be subject to subpoena, discovery or introduction into evidence in any civil or criminal proceeding; provided, however, that information, documents and records otherwise available from any other source shall not be immune from subpoena, discovery or introduction into evidence through

698 these sources solely because they were presented during proceedings of a team or are maintained
699 by a team.

700 (g) Nothing in this section shall limit the powers or duties of the child advocate or district
701 attorneys.

702 Section 17. The office shall, every 3 years, oversee the review of child welfare data
703 reporting and make recommendations for improvements to the report and profile pursuant to
704 subsections (a) and (b) of section 26 of chapter 18B and other reports required pursuant to
705 subsections (c), (d) and (e) of said section 26 of said chapter 18B. Following the release of the
706 department's annual report, the office shall seek input from the public, advocates and diverse
707 stakeholders from across the commonwealth. The office shall consult with other individuals with
708 relevant expertise, including academics, researchers and service providers. Following such
709 review, the office shall post a report on the office's website on its recommendations, together
710 with drafts of any legislation necessary to carry out its recommendations and an aggregate
711 response to the comments.

712 SECTION 35. Section 2A of chapter 38 of the General Laws is hereby repealed.

713 SECTION 36. Chapter 71 of the General Laws is hereby amended by adding the
714 following new section:-

715 Section 34I. (a) Each public elementary and secondary school shall provide the education
716 records of a student in the custody of the department of children and families in a timely and
717 appropriate manner to a case worker or other authorized representative from the department of
718 children and families upon request.

(b) Upon receipt of notification from the department of children and families, as required by subsection (j) of section 23 of chapter 119, that it has been determined it is not in the best interest of a student to remain at their school district of origin, the new school district of enrollment shall immediately enroll the student even if the student is unable to produce records normally required for enrollment, including, but not limited to: (i) proof of residency; (ii) academic records; (iii) individualized education programs; (iv) discipline records; (v) documents evidencing proof of custody; (vi) identification documents; and (vii) medical, health, and immunization records; provided, however, that schools may require emergency contact information for a student.

(c) The new school district of enrollment shall immediately request, from the school district of origin, the regularly required enrollment forms and a transfer of any additional education records of the student, including but not limited to: (i) immunization records and other health records possessed by the school; (ii) academic transcripts; (iii) class enrollment history, including any advanced or remedial courses; (iv) attendance records; (v) individualized education program or section 504 plan, as applicable; and (vi) disciplinary records and other records contained in the student's temporary education record maintained centrally by the school, to the new school district of enrollment. The school district of origin shall transfer such student records immediately and without the prior consent of a parent or guardian, consistent with the Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g.

(d) The board of elementary and secondary education shall promulgate regulations to implement the provisions of this section, including specific timelines for the transfer of education records for students in the custody of the department of children and families.

SECTION 37. Section 21 of chapter 119 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the definition of “Child requiring assistance” and inserting in place thereof the following definition:-

"Child requiring assistance", a child between the ages of 12 and 18 who is not currently in the custody of the department of children and families or the department of youth services who:

- (i) repeatedly runs away from the home of the child's parent, legal guardian or custodian; (ii) repeatedly fails to obey the lawful and reasonable commands of the child's parent, legal guardian or custodian, thereby interfering with their ability to adequately care for and protect the child;
- (iii) repeatedly fails to obey the lawful and reasonable regulations of the child's school; (iv) is habitually absent without permission; or (v) is a sexually exploited child.

SECTION 38. Said section 21 of said chapter 119, as so appearing, is hereby further amended by striking out the definition of “habitually truant” and inserting in place thereof the following definition:-

“Habitually absent without permission”, a child, not excused from attendance under the lawful and reasonable regulations of such child’s school, who willfully fails to attend school for more than 8 school days in a quarter.

SECTION 39. Subsection (f) of section 23 of chapter 119 of the General Laws, as so appearing, is hereby amended by striking out the last sentence.

SECTION 40. Subsection (h) of said section 23 of said chapter 119, as so appearing, is hereby amended by striking out the second paragraph.

SECTION 41. Said section 23 of said chapter 119, as so appearing, is hereby further amended by adding the following subsection:

(j) When a school-aged child who is in the custody of the department is placed in or transferred to an out-of-home placement, the department shall timely notify the school-aged child's current school district of enrollment of such placement or transfer; provided further, that if it is determined it is not in the school-aged child's best interest to remain at their school district of origin, the department shall timely notify the new school district of enrollment of the school-aged child's transfer in enrollment.

SECTION 42. Said chapter 119 is hereby amended by inserting after section 23C the following section:-

Section 23E. (a) Each child in the custody or care of the department has the following rights:

(1) Safety and Security:

(i) Each child shall be treated with dignity, respect and consideration, and has the right to have their privacy respected.

(ii) Each child has the right not to be harmed by department staff, foster parents or service providers.

(iii) Each child has the right not to be discriminated against or harassed by department staff, foster parents, the child's attorney or service providers on the basis of religion, race, color, creed, gender, gender identity, gender expression, sexual orientation, national origin, age, disability, culture, language or ethnicity.

(iv) Each child has the right to a placement that is free from physical, psychological, sexual, emotional or other abuse, neglect or exploitation.

(v) Each child has the right to access personal possessions, personal space and privacy with allowance for safety.

(vi) Each child has the right to control the taking, use and disclosure of all pictures of themselves.

(vii) Each child has the right to access sufficient healthy food, clothing, personal care products, appropriate self-care needs for their hair and body, as well as items that preserve and promote the child's religion, culture and gender identity.

(viii) Each child has the right to be placed in a safe and nurturing environment and receive appropriate care and treatment in the least restrictive setting available that can meet the child's needs and address their trauma history.

(ix) Each child has the right not to be placed, housed or detained in a secure department of youth services placement based on the department's inability to provide an available and appropriate foster placement. The department shall not advocate for bail of any amount for children in its care or custody.

(x) Each child has the right to developmentally appropriate information about a foster family or program prior to being placed whenever possible and, whenever possible and appropriate, shall have an opportunity to meet the foster parent or program staff before placement occurs. If the foster placement is only able to accommodate the child for a limited time, the child shall be notified of the anticipated duration of the child's stay with that foster

placement. The child shall be informed of a placement change and any reason for the change at least 5 days in advance whenever possible. When a change is made in an emergency circumstance, the child shall be given as much notice as possible. The child's belongings shall be packed with care and the child shall be allowed to bring their essential belongings and comfort items with them.

(2) Connections to Family, Community and Identity:

(i) Each child has the right to know, understand, learn about and develop the child's racial, cultural, linguistic, gender, religious and ethnic identity, including but not limited to clothing, hair, other cultural expressions of identity and body care and to a placement that will provide or maintain the connections necessary to preserve and promote the child's identities.

(ii) To the best of the department's ability, each child has the right to preserve and maintain all languages the child entered care speaking and to reside in a placement that provides or facilitates appropriate language access.

(iii) Each child has the right to a placement that supports and affirms their identity, including on the basis of religion, race, color, creed, gender, gender identity, gender expression, sexual orientation, national origin, age, disability, culture, language or ethnicity.

(iv) Each child has the right to choose whether or not and to whom to disclose information about their sexual orientation and gender identity, and the right to have that information not further disclosed without their consent, unless required to protect the child's health and safety, or where compelled by law or court order.

(v) Each child has the right to timely permanency which includes stabilization of family, reunification, adoption, guardianship, care with kin or another planned permanent living arrangement.

(vi) Each child has the right to a placement identified and located through due diligence that prioritizes the child's relatives and kinship, using full and fair consideration, as potential placement providers, when the child cannot remain safely at home with their parent or parents.

(vii) Each child has the right to frequent and meaningful contact with the child's siblings or half-siblings, facilitated by the department pursuant to section 26B of chapter 119. The department shall prioritize placement with the child's siblings or half-siblings in all settings and permanency plans, including but not limited to foster care, congregate care, and adoption, unless the joint placement is contrary to the safety, well-being, or permanency of any of the siblings.

(viii) Each child has the right to family time of a duration and frequency and in a setting that (A) is consistent with the developmental or clinical needs of the child and (B) promotes and preserves their connections with their family. Family time shall take place in person and outside of a department office whenever possible.

(ix) Each child has the right to other forms of parental contact, including but not limited to mail, phone calls, videoconferences, email and texts if they have their own phone and if not harmful to the safety or well-being of the child. All placements shall facilitate access to virtual forms of contact if safe and appropriate.

(x) Each child has the right to assistance to maintain positive contact with other family members and significant other positive relationships in the child's life, including but not limited to extended family, family friends, teachers, friends and community individuals.

(xi) Each child has the right to be treated as a family member in a foster family and, whenever possible, be included in a foster family's activities, holidays and traditions while taking into consideration factors that include but are not limited to the child's age and trauma history. Each child shall have the opportunity to be included in the daily activities of the family and to maintain the most normal daily routine and environment as possible. If choosing not to take part, each child or young adult shall have the opportunity to discuss their reasons with the social worker and foster family.

(3) Health Care and Accessibility:

(i) Each child has the right to access appropriate, timely and gender-affirming medical, reproductive, dental, vision, mental and behavioral health services regularly and more often as needed.

(ii) Each child has the right to discuss any questions or concerns the child has relating to medication or other physical, mental or behavioral health treatment with a healthcare provider and to understand the medications or treatment provided, its purposes and side effects in a developmentally appropriate way.

(iii) Each child has the right to out-of-home placements with reasonable accommodations for any disabilities the child may have, consistent with state and federal law. Reasonable accommodations shall be provided in a timely manner and in such a way as to protect the privacy of the child. Each child also has a right to discuss any disabilities with the department and request adaptive equipment, auxiliary aids or services.

(4) Education, Employment and Social Connections:

(i) Each child has the right to attend school regularly, to educational stability, to educational supports and to an education that meets their needs under federal and state law.

(ii) Each child has the right for the department to prioritize school stability by maintaining the child at their school of origin unless it is found, in a Best Interest Determination meeting pursuant to federal law, not to be in their best interest to do so.

(iii) Each child has the right to participate in developmentally appropriate school, extracurricular, enrichment, religious, cultural, linguistic, ethnic and social activities and to have any placement provider use the reasonable and prudent parenting standard when making decisions regarding participation in such activities.

(iv) Each child has the right to achieve developmentally and religiously appropriate, age-related milestones, including but not limited to obtaining a driver's license, opening bank accounts, birthday celebrations, religious ceremonies or graduations.

(v) Each child has the right to be informed of and supported in accessing all available services through the department, including but not limited to educational, vocational and employment services, assistance in acquiring life skills, educational assistance including but not limited to tuition and fee waivers for post-secondary education, financial support, housing support, assistance with credit reports and resolving inaccuracies, training and career guidance to accomplish personal goals and prepare for the future, employment supports available to children in care and adaptive equipment or auxiliary aids and supports.

(vi) Each child has the right to developmentally appropriate education on financial preparedness, job readiness, appropriate use of social media, education options, healthy relationships, physical, mental, sexual and reproductive health.

(5) Resources and Supports:

(i) Each child has the right to reasonable access to a social worker who can make action plan decisions. Each child shall have opportunities for the child to have private conversations with a social worker regarding any questions, grievances or concerns. Reasonable access shall include providing the child with the department's social worker and supervisor's office telephone numbers and email addresses as well as, at a minimum, monthly visits by the department. The department shall also provide the child an emergency contact number for the department during non-business hours for emergency and safety issues.

(ii) Each child has the right to participate as developmentally appropriate in the development and review of the action plans and family time and visitation plans, their individualized education program and best interest determination and shall be consulted as the department formulates or updates said items. Children aged 14 and older shall also be presented with the action or service plan for their review, written feedback and signature.

(iii) Each child has the right to be informed, in a developmentally appropriate way, of the meaning of all documents that they are asked to sign by the department or its agents, contractors or providers including the voluntary agreement for placement and documents of similar importance. A child shall have their attorney present whenever asked to sign any documents by the department or its agents, contractors or providers, or the document shall be provided in a timely fashion to the child's attorney to give an opportunity for review in advance of presenting it for signature.

(iv) Each child has the right to be informed in a developmentally appropriate way of the reasons the department became involved with the child's family, why the child came into care

910 and why the child is still in care. The department shall offer support through the review process
911 to address any possible trauma caused by a child's access to their case files. Upon turning 18, the
912 young adult shall have the right to access their individual information from their case files,
913 barring any state or federal law that would prohibit the department from allowing the release of
914 information.

915 (v) Each child aged 14 or older has the right to be included in foster care review
916 meetings, permanency hearings and lead agency team meetings except for those parts that
917 involve information that is confidential regarding their parents or a previous or future adoptive,
918 kinship or foster parent under federal or state law, and unless documented by court order that
919 participation would be detrimental to the child. The department shall provide the child the ability
920 to offer confidential input to the department before a final decision is made with respect to
921 determining or changing placement or permanency. If the child is unable to attend in person, by
922 phone or video, the child shall have the right to submit a written statement to be considered at the
923 meeting or hearing.

924 (vi) Each child and young adult has the right to adequate notice of all court hearings by
925 their attorney. To the extent possible, the notice shall include the date, time and location of the
926 hearing. If developmentally appropriate, the child's social worker and the child's attorney shall
927 inform them of actions or decisions made by the court. In a developmentally appropriate manner,
928 the child's attorney shall ensure the child understands the child's right to attend their annual
929 permanency hearings and speak to the judge regarding any decision that may have an impact on
930 the child's life.

(vii) Each child and young adult has the right to access their medical, dental and educational records held by the department as well as their personal documents, including but not limited to social security card, birth certificate, health insurance information, state identification card, driver's license, passport and documentation related to their immigration status, including work authorization, in a developmentally appropriate way. When a child or young adult leaves the care of the department, they shall be given copies of medical, dental and educational records held by the department and original copies of all personal documents. The department shall further provide contact information for providers who are currently providing care for the young adult. The department shall begin planning to return the documents to the child at least 30 days before the young adult leaves care.

(viii) Each child and young adult has the right to change their name and the right to change their gender marker on official documents with assistance from the child or young adult's attorney and the department, and to have all relevant legal documents updated accordingly.

(ix) Each eligible child and young adult has the right to obtain a state identification card with the department's assistance.

(x) Each child and young adult has the right to an attorney pursuant to section 29 of chapter 119 and to meaningful contact with said attorney, including at foster care reviews. Each child shall be informed, when appropriate, of the name and phone numbers of the assigned attorney. Each child, child's parent, and foster parent shall be informed, when appropriate, that the child can contact the child's attorney, and of the processes to file a complaint regarding the child's attorney and to request a change of attorney for the child.

(xi) Each child, and their attorney, has the right to be informed if the department applies for any benefits on behalf of the child, including but not limited to benefits under Title XVI of the Social Security Act, also referred to as supplemental security income; benefits under Title II of the Social Security Act, also referred to as retirement, survivors or disability benefits, and if the department applies to be the representative payee for such benefits. The department shall preserve all of such funds received in an interest-bearing account belonging to the child so the funds are available for the child's benefit and use while they are in care, and the child's use when they turn 18. The department shall not use such funds for the customary costs of foster care, nor shall it use such funds to pay the costs of items which would ordinarily be funded by another source. If necessary, the department shall preserve said funds in an achieving a better life experience account authorized by 26 U.S.C. § 529A, or another trust account for the child determined not to interfere with supplemental security income or asset limitations for any other benefit program.

(6) Transition Age Youth:

(i) Each child and young adult, age 14 or older, has the right to collaborate with the department to plan their transition from foster care to adulthood. Transition planning should cover all areas needed for a youth to be stable and successful as an adult, including but not limited to, planning for visits or contact with parents and siblings; building relationships with other caring adults, particularly with life-long connections; making an education plan including post-secondary education; finding vocational, employment and career counseling and placement; securing stable housing; developing expertise in daily living skills; maintaining physical, reproductive and mental health care and health insurance; learning how to access community resources and public benefits and services; connecting with other state agencies; developing

975 financial skills including, but not limited to, understanding budgeting and money management as
976 well as checking and savings accounts; and receiving, understanding and correcting, if
977 applicable, the child's consumer credit report.

978 (ii) Each young adult who turns 18 while in the custody of the department, has the right
979 to continue under the responsibility of the department and receive young adult services until
980 turning 22 years of age, pursuant to federal and state requirements, unless completing an
981 educational program until age 23. Each young adult has the right to be offered a voluntary
982 placement agreement by the department in the month prior to their turning 18 years old. The
983 voluntary placement agreement shall be developed together with the child or young adult during
984 permanency and transition planning. Each child or young adult has the right to be made aware of
985 this right and any federal requirements governing services for transition age youth throughout the
986 transition planning process.

987 (iii) Each child has the right to a timely transition plan prior to turning 18 years old,
988 crafted by the department at the direction of the transition age youth, regardless of whether they
989 will continue under the responsibility of the department upon turning 18, that includes
990 personalized, detailed, tangible, available and clear options for resources for meeting their basic
991 needs including, but not limited to, housing, education and vocational supports which fulfill the
992 requirements of 42 U.S.C. § 675(5)(H), as amended.

993 (iv) Each young adult who has chosen to remain under the responsibility of the
994 department has the right to engage and re-engage with the department under a voluntary
995 placement agreement at any time for any reason.

(v) Each young adult who has chosen to remain under the responsibility of the department, who is leaving care at age 18 or who is re-entering care has the right to be housed and provided information about and assistance with securing all department-identified, appropriate housing opportunities.

(7) Remedies.

(i) Each child has the right to have these rights enforced. The department shall not retaliate against or punish a child for asserting their rights. Nothing in this section shall be construed to diminish the rights, privileges or remedies of any person under any other federal or state law.

(ii) Each child has the right to department-provided contact information for the ombudsperson and the office of the child advocate when they enter the care and custody of the department and upon request. If it is developmentally inappropriate to provide the child with such information, a child's attorney shall be provided with this contact information.

(iii) Each child has the right, if the child and the child's attorney, believes any of the above rights have been violated, to discuss the alleged violation with the department's ombudsman, file a grievance with the department or file a complaint with the office of the child advocate. The department shall not retaliate against or punish a child, a child's parent, an attorney, a social worker, a foster parent or placement provider for asserting this right. If the department or the office of the child advocate determines the child's rights have been violated, the department shall resolve the violation as soon as practicable and make corrections so that the violation does not reoccur.

(b) The rights enumerated in subsection (a) shall be obligations of the department. The department shall amend any regulations or policies that may conflict with this section in a timely fashion.

(c) The rights enumerated in subsection (a) are not an exhaustive list of rights to which children under the custody, care or responsibility of the department are entitled and should not be read to limit the rights of children, or the responsibilities of the department, in any way.

(d) The department shall create, in consultation with community members and young people with lived experience in the child welfare system, a simple and plain language version of these rights as enumerated in subsection (a) so that they are accessible and easily understood by children and young adults in the department's care. The department shall present the document to each child in its care, or when developmentally appropriate to the child's attorney, the parents of each child in its care and the foster parent or placement provider of each child in its care. The department and the child's attorney shall explain these rights to the child in a developmentally appropriate way when the child enters the department's care. The department shall ensure the document is translated into the preferred language of the child or young adult in care, the child's parents and the foster parents. The document shall be posted in all congregate care facilities in a public space where all residents have access, prominently on the department's website and in all area offices.

SECTION 43. Said chapter 119 is hereby further amended by inserting after section 29D the following section:-

Section 29E. (a) Not later than 5 business days after a non-emergency change in the placement of a child or a young adult or after any non-emergency hospitalization, the department

1039 shall provide notice of the change in placement or hospitalization to counsel for the child or
1040 young adult appointed pursuant to section 29.

1041 (b) Not later than 5 business days after an emergency change in a child's or a young
1042 adult's placement or after an emergency hospitalization, the department shall provide notice of
1043 the change in placement or hospitalization to counsel for the child or the young adult appointed
1044 pursuant to section 29.

1045 (c) Not later than 3 business days after receipt of a report under section 51A, the
1046 department shall provide notice to a child's counsel if it receives a report under said section 51A
1047 and the child is the subject of the report.

1048 (d) The department shall provide notice to a child's or young adult's counsel within 3
1049 business days whenever the department becomes aware of: (i) the child or young adult being
1050 arrested; (ii) the child's or young adult's involvement in any proceeding under this chapter or
1051 any criminal investigation or proceeding; (iii) the child or young adult being suspended or
1052 expelled from school; or (iv) the child or young adult being the subject of any proceeding
1053 regarding their suspension or expulsion from school.

1054 (e) The department's attorney portal shall provide timely automated notifications for all
1055 events described in this section to counsel appointed pursuant to section 29.

1056 SECTION 44. Said chapter 119 is hereby further amended by striking out section 39E, as
1057 appearing in the 2024 Official Edition, and inserting in place thereof the following section:-

1058 Section 39E. (a) Any division of the juvenile court department may receive and hear
1059 requests for assistance stating that there is a child requiring assistance or a family requiring

1060 assistance as defined in section 21, pursuant to this section or sections 39F to 39I, inclusive.
1061 Proceedings pursuant to this section and said sections 39F to 39I, inclusive, shall not be deemed
1062 criminal proceedings and any record of such proceedings, including the filing of an application
1063 for assistance and creation of a docket, shall not be entered in the criminal offender record
1064 information system. Notwithstanding any general or special law to the contrary, no record
1065 pertaining to the child involved in the proceedings shall be maintained or remain active after the
1066 application for assistance has been dismissed; provided, however, that nothing herein shall be
1067 construed to prohibit the maintenance or reporting of information after records pertaining to the
1068 matter have been expunged, provided that the information is kept in a manner that does not
1069 enable identification of the child or petitioner and is used solely for statistical or bona fide
1070 research purposes. The identity and record of any child for whom an application for assistance is
1071 filed shall not be submitted to the department of criminal justice information services, criminal
1072 offender record information system, court activity record index or any other criminal record
1073 information system. Proceedings under this section and sections 39F to 39I, inclusive, shall be
1074 confidential and not open to the public. Subject matter jurisdiction of the Boston juvenile court
1075 under this section shall extend to the territorial limits of Suffolk county.

1076 (b) A parent, legal guardian, or custodian of a child having custody of such child, may
1077 initiate an application for assistance in any of the juvenile courts stating that said child repeatedly
1078 runs away from the home of said parent or guardian or repeatedly refuses to obey the lawful and
1079 reasonable commands of said parent, guardian or custodian resulting in said parent, guardian or
1080 custodian's inability to adequately care for and protect said child. The application shall state
1081 whether the child or the child's family has visited or received services from a family resource
1082 center within 180 days of submitting the application. Before scheduling a hearing on an

application for assistance, the clerk shall provide to the petitioner: (i) informational materials prepared by the court that: (A) explain the court process; (B) include the types of orders that the court may issue and the possibility of changes in the custody of the child; (C) include an explanation of the services that may be available through the court process, including language translation services and reasonable accommodations, and the manner in which those services may be delivered; and (ii) informational materials developed by the child advocate under section 15 of chapter 18C. If the child or the child's family indicates on the application that they have not visited or received services from a family resource center within the last 180 days, the clerk shall refer the child and the child's family to a family resource center before scheduling a hearing on the application. If the petitioner has visited or received services from a family resource center within the last 180 days and decides to proceed after receiving the required informational materials, the clerk shall set a hearing date forthwith, but not later than 15 days after the request is presented to the clerk for filing, to determine whether assistance is needed, and shall notify the child of such hearing.

(c) A school district may initiate an application for assistance stating that a child is not excused from attendance in accordance with the lawful and reasonable regulations of such child's school, has willfully failed to attend school for more than 8 school days in a quarter or repeatedly fails to obey the lawful and reasonable regulations of the child's school. The application for assistance shall also state whether and when the child and the child's family have been referred to a family resource center, and whether the child and the child's family participated in the referred services to the best of the applicant's knowledge. An application that fails to include such statement, or that indicates that no referral to a family resource center has been made, shall not be scheduled for a hearing. The application shall also provide a statement of the specific steps

1106 taken by the school district to prevent the child's absenteeism, if applicable, and, if the
1107 application for assistance states that a child has repeatedly failed to obey the lawful and
1108 reasonable regulations of the school, the application shall provide a statement of the specific
1109 steps taken by the school to improve the child's conduct. The application shall detail the specific
1110 court intervention the school district is seeking to support the child in returning to school or
1111 improving the child's conduct. The school district shall not initiate an application for assistance
1112 to address matters that fall within the school's legal responsibility under federal and state law
1113 including, but not limited to, the creation or amendment of an individualized education program,
1114 decisions regarding the educational placement of a student pursuant to an individualized
1115 education program or the creation or amendment of a section 504 plan to provide the student
1116 with accommodations that allow the student to have equal access to education.

1117 Before an application for assistance initiated by a school district is scheduled for a
1118 hearing, a probation officer shall consult with the family resource center to which the child and
1119 the child's family was referred. Staff at a family resource center shall be authorized to report to a
1120 probation officer if the child has met with a case manager pursuant to subsection (c) of section
1121 16U of chapter 6A. The family resource center shall, in writing, indicate to the probation officer
1122 whether, in its opinion, it believes the child and the child's family have exhausted all relevant
1123 community-based service options that are reasonably available to them. Any other information
1124 about the child or family shall be kept confidential as required by section 16U of chapter 6A. If
1125 the family resource center indicates to the probation officer that community-based options have
1126 not been exhausted and the supports requested in the filing can be obtained from the family
1127 resource center or through a community-based service provider or state agency to which the
1128 family resource center is able to connect the child and the child's family, the application for

1129 assistance shall be dismissed. The probation officer may refer the child to an appropriate public
1130 or private organization or person for psychiatric, psychological, educational, occupational,
1131 medical, dental, social or substance use treatment services.

1132 If the probation officer agrees with the family resource center's determination that all
1133 community-based service options relevant to the child's needs and reasonably accessible to the
1134 petitioner have been exhausted, and the petitioner decides to proceed, the clerk shall set a date
1135 for a hearing forthwith, but not later than 15 days after the request is presented to the clerk for
1136 filing, to determine whether assistance is needed, and shall notify the child of such hearing.

1137 (d) With respect to applications for assistance initiated pursuant to subsections (b) or (c)
1138 and for which the clerk has scheduled a hearing, the court shall hold a hearing in which it shall
1139 receive the recommendation of the probation officer and shall either: (i) decline to accept the
1140 application for assistance because there is no probable cause to believe that the child and the
1141 child's family are in need of assistance; (ii) decline to accept the application for assistance
1142 because it finds that the interests of the child would best be served by informal assistance, in
1143 which case the court shall, with the consent of the child and the child's parents or guardian, refer
1144 the child to a probation officer for assistance; or (iii) accept the application for assistance and
1145 schedule a fact-finding hearing. If the child is brought in on custodial protection, the court shall
1146 accept an application for assistance unless one has already been filed, and the court shall
1147 immediately request the probation officer promptly to make like inquiry and thereafter report to
1148 the court the probation officer's recommendation as to whether the interests of the child can best
1149 be served through referral to community-based services or informal assistance without a fact-
1150 finding hearing. Upon receiving such recommendation, the court may hold a hearing and shall

1151 decide whether to proceed with a fact-finding hearing or to refer the child to the care of a
1152 probation officer for assistance.

1153 When an application for assistance is dismissed under this section, the court shall enter an
1154 order directing expungement of any records of the request and related proceedings maintained by
1155 the clerk, the court, the department of criminal justice information services, the court activity
1156 record index and the probation department that directly pertain to the application for assistance.
1157 Nothing herein shall be construed to prohibit the maintenance or reporting of information
1158 relating to any petition filed under this section and sections 39F to 39I, inclusive, after records
1159 pertaining to the matter have been expunged, provided that the information is kept in a manner
1160 that does not enable identification of the child or petitioner and is used solely for statistical or
1161 bona fide research purposes.

1162 Whenever a child is referred to a probation officer for assistance, such officer may
1163 conduct conferences with the child and the child's family to effect adjustments or agreements
1164 which are calculated to resolve the situation which formed the basis of the application for
1165 assistance and which will eliminate the need for a fact finding hearing. During the pendency of
1166 such referrals or conferences, neither the child nor the child's parents shall be compelled to
1167 appear at any conferences, produce any papers or visit any place; provided, however, that if the
1168 child or the child's parents fail to participate in good faith in the referrals or conferences
1169 arranged by the probation officer, the probation officer shall so certify in writing, and the clerk
1170 shall accept the application for assistance if one has not already been accepted and shall set a
1171 date for a fact finding hearing. The judge who conducted the hearing on the acceptance of the
1172 application for assistance shall not preside at any subsequent hearing. Conferences and referrals
1173 arranged under this section may extend for a period not to exceed 90 days from the date that the

1174 application for assistance was initially filed, unless the parent and child voluntarily agree in
1175 writing to a continuation of such conferences or referrals for an additional period not to exceed
1176 90 days from the expiration of the initial period. Upon the expiration of the initial 90-day period,
1177 or of such additional 90-day period, the application for assistance, if any, shall be dismissed and
1178 the child and the child's parents discharged from any further obligation to participate in such
1179 conferences and referrals, or an application for assistance shall, if not already accepted, be
1180 accepted and a date set for a fact-finding hearing. No statements made by a child or by any other
1181 person during the period of inquiries, conferences or referrals may be used against the child at
1182 any subsequent hearing to determine that the child requires assistance, but such statements may
1183 be received by the court after the fact finding hearing for the purpose of disposition.

1184 The commissioner of probation shall establish a system to collect data on all requests for
1185 assistance made and how they are resolved under this section and sections 39F to 39I, inclusive.
1186 Such system shall maintain the privacy of clients served, assist the court in identifying and
1187 addressing the needs of the population to be served and collect information related to: (i)
1188 demographics of the child, including but not limited to the racial and ethnic identity of the child,
1189 age, primary language, disability status and gender; (ii) the insurance status and coverage of
1190 clients served; (iii) whether the child had received support from a family resource center
1191 pursuant to section 16U of chapter 6A or another community-based organization prior to filing,
1192 the supports requested as detailed in the application, the needs identified by the probation officer,
1193 the length of time a child has been receiving assistance from a probation officer, including the
1194 time prior to and subsequent to the filing of an application for assistance; (iv) whether a school-
1195 initiated filing involves a need for services or placement decisions that fall within the legal
1196 responsibility of the school district under federal or state law; (v) the identity of any public or

private organization to whom a probation officer has referred a child or family for services; and
(vi) any other information that may assist the commissioner and the court in evaluating the
availability and effectiveness of services for children who are the subjects of requests for
assistance under this section. The probation officer shall gather information concerning each
child and family referred to the officer including, but not limited to, (A) insurance status and
coverage; (B) the child's school district; (C) whether the child or family received support from a
family resource center pursuant to said section 16U of said chapter 6A; (D) the supports
requested as detailed in the child requiring assistance application; (E) the needs identified by the
probation officer; and (F) other information that may assist the commissioner of probation and
the court in evaluating the availability and effectiveness of services for children who are the
subjects of requests for assistance under this section.

Upon the filing of an application for assistance under this section, the court may issue a
summons, to which a copy of the application for assistance shall be attached, requiring the child
named in such application to appear before the court at the time set forth in the summons. If such
child fails to obey the summons, the court may issue a warrant reciting the substance of the
petition and requiring the officer to whom it is directed forthwith to take and bring such child
before the court. Notice of the hearing shall be given to the department of children and families.

If the court summons a child to appear, the court shall in addition issue a summons to
both parents of the child, if both parents are known to reside in the commonwealth, or to 1 parent
if only 1 is known to reside within the commonwealth, or, if there is no parent residing in the
commonwealth, then to the parent having custody or to the lawful guardian of such child. The
summons shall require the person served to appear at a time and place stated therein at a hearing
to determine whether or not the child is in need of assistance.

1220 Unless service of the summons required by this section is waived in writing, such
1221 summons shall be served by the constable or police officer, either by delivering it personally to
1222 the person to whom addressed, or by leaving it with a person of proper age to receive the same,
1223 at the place of residence or business of such person, and said constable or police officer shall
1224 immediately make return to the court of the time and manner of service.

1225 SECTION 45. Said chapter 119 is hereby further amended by striking out section 39G, as
1226 so appearing, and inserting in place thereof the following section:-

1227 Section 39G. At a hearing to determine whether a child and family require assistance, the
1228 child and the child's attorney shall be present and the parents, legal guardian or custodian shall
1229 be given an opportunity to be heard. The petitioner and any party may file a motion to dismiss
1230 the request for assistance at any time prior to a hearing to determine the disposition of a request
1231 for assistance. Upon a filing of a motion to dismiss, the judge shall order that the request for
1232 assistance be dismissed upon a showing that the dismissal is in the best interests of the child or if
1233 all parties agree to the dismissal. A probation officer may at any time recommend to the court
1234 that the request for assistance be dismissed upon a showing that dismissal is in the best interests
1235 of the child.

1236 Upon a finding that a child requires assistance after a fact finding hearing, the court shall
1237 convene and may participate in a conference of the probation officer who conducted the
1238 preliminary inquiry, a representative from a family resource center or other community-based
1239 services program, if involved with the family, the petitioner, a representative from the child's
1240 school, the child's parent, legal guardian or custodian, the child and the child's attorney, a
1241 representative of the department of children and families, if involved with the family, and any

1242 other person who may be helpful in determining the most effective assistance available to be
1243 offered to the child and family, including representatives from MassHealth, the juvenile court
1244 clinic and other state entities depending on the supports requested. The probation officer shall
1245 present written recommendations and other persons at the conference may present written
1246 recommendations to the court to advise the court on appropriate treatment and services for the
1247 child and family, appropriate placement of the child, and appropriate conditions and limitations
1248 on any such placement.

1249 At the conference and subsequent hearing on disposition, the child and the child's
1250 attorney shall be present and the parents, legal guardian or custodian, and the child and petitioner
1251 shall be given an opportunity to be heard. The court may receive evidence as to the best
1252 disposition of the petition from all persons who participate in the conference and any other
1253 person who may be helpful in determining an appropriate disposition. The department of
1254 children and families shall be provided with advance notice of the hearing and an opportunity to
1255 participate prior to the court recommending placement of the child in the department's custody
1256 pursuant to clause (iii) of the following paragraph.

1257 If the court finds the statements in the application for assistance have been proved at the
1258 hearing, it may determine the child to be in need of assistance. Upon making such determination,
1259 the court, taking into consideration the physical and emotional welfare of the child, may make
1260 any of the following orders of disposition:

1261 (i) subject to any conditions and limitations the court may prescribe, including provision
1262 for medical, psychological, psychiatric, educational, occupational and social services, and for

1263 supervision by a court clinic or by any public or private organization providing counseling or
1264 guidance services, permit the child to remain with their parents, legal guardian or custodian;

1265 (ii) subject to such conditions and limitations as the court may prescribe, including, but
1266 not limited to provisions for those services described in clause (i), place the child in the care of a
1267 relative or other adult individual who, after inquiry by the probation officer or other person or
1268 agency designated by the court, is found to be qualified to receive and care for the child;

1269 (iii) subject to the provisions of sections 32 and 33 and with such conditions and
1270 limitations as the court may recommend, place the child in the custody of the department of
1271 children and families; provided, however, that at the same time, the court shall consider the
1272 provisions of section 29C and shall make the written certification and determinations required by
1273 said section 29C; provided further, that the department shall give due consideration to the
1274 recommendations of the court; provided further, that the department may not refuse out-of-home
1275 placement of a child if the placement is recommended by the court, provided that the court has
1276 made the written certification and determinations required by said section 29C and has provided
1277 the department advance notice and an opportunity to participate in the hearing; provided further,
1278 that the department shall direct the type and length of such out-of-home placement; and provided
1279 further, that the department shall give due consideration to the requests of the child that the child
1280 be placed outside the home of a parent or guardian where there is a history of abuse and neglect
1281 in the home by the parent or guardian.

1282 If the family or child is directed by the court to participate in treatment or services which
1283 are eligible for coverage by an insurance plan or other third-party payer, payment for such
1284 services shall not be denied if the treatment or services otherwise meet the criteria for coverage.

1285 A child who is the subject of an application for assistance shall not be confined in
1286 shackles or similar restraints or in a court lockup facility in connection with any proceedings
1287 under sections 39E to 39I, inclusive. A child who is the subject of an application for assistance
1288 shall not be placed in a locked facility or any facility designated or operated for juveniles who
1289 are alleged to be delinquent or who have been adjudicated delinquent; provided, however, that
1290 such child may be placed in a facility which operates as a group home to provide therapeutic care
1291 for juveniles, notwithstanding that juveniles adjudicated delinquent are also provided care in
1292 such facility.

1293 Any order of disposition pursuant to this section shall continue in force for not more than
1294 120 days; provided, however, that the court which entered the order may, after a hearing, extend
1295 its duration for up to 3 additional 90-day periods, if the court finds that the purposes of the order
1296 have not been accomplished and that any such extension would be reasonably likely to further
1297 those purposes.

1298 No order shall continue in effect after the eighteenth birthday of a child named in an
1299 application for assistance authorized to be filed by a parent, a legal guardian or custodian or a
1300 police officer or after the sixteenth birthday of a child named in a petition authorized to be filed
1301 by a school district.

1302 SECTION 46. Section 39½ of said chapter 119, as so appearing, is hereby amended by
1303 striking out the last paragraph.

1304 SECTION 47. Section 51D of said chapter 119, as so appearing, is hereby amended by
1305 striking out the last paragraph.

1306 SECTION 48. Section 51E of said chapter 119, as so appearing, is hereby amended by
1307 striking out, in line 2, the figure “51D” and inserting in place thereof the following figure:- 51C.

1308 SECTION 49. Chapter 209A of the General Laws is hereby amended by inserting after
1309 section 9 the following section:-

1310 Section 9A. Any on-behalf-of order shall remain in effect after the minor reaches the age
1311 of majority unless otherwise ordered by the court. Upon the minor reaching the age of majority,
1312 the former minor may appear at court on the date and time the order is to expire, and the court
1313 shall determine whether to extend the order for any additional time reasonably necessary to
1314 protect them or to enter a permanent order.

1315 SECTION 50. Section 5E of chapter 210 of the General Laws is hereby repealed.

1316 SECTION 51. Chapter 258E of the General Laws is hereby amended by inserting after
1317 section 11 the following section:-

1318 Section 11A. Any on-behalf-of order shall remain in effect after the minor reaches the
1319 age of majority unless otherwise ordered by the court. Upon the minor reaching the age of
1320 majority, the former minor may appear at court on the date and time the order is to expire, and
1321 the court shall determine whether to: (i) extend the order for any additional time that the court
1322 deems reasonably necessary to protect such person; or (ii) enter a permanent order.

1323 SECTION 52. Section 44 shall take effect 1 year after the effective date of this act.